Fort Bend County District Court

Cause No. 2026-CV-0039

Zachary Arnold, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	7-2-26
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

Subject to and without waiving the foregoing general denial, Defendant asserts the following affirmative defenses.

First, Plaintiff's alleged injuries and damages were not proximately caused by any negligence of Defendant. The collision at issue, to the extent it occurred as described, was caused or contributed to by Plaintiff's own acts or omissions, including sudden or unexpected braking and failure to maintain a proper lookout.

Second, Plaintiff failed to exercise ordinary care to mitigate damages, including by failing to follow reasonable medical advice and by incurring treatment that was unnecessary or unrelated to the collision. Any recovery must be reduced accordingly.

Third, Defendant invokes Chapter 33 of the Texas Civil Practice and Remedies Code. Any percentage of responsibility attributable to Plaintiff, or to any settling person or responsible third party, must be determined by the trier of fact and used to reduce or bar any recovery against Defendant.